

TENTATIVE RULING

Case: **Unifund CCR Partners v. Charles**
 Case No. CV2004-1013

Hearing Date: **August 19, 2026** **Department Thirteen** **9:00 a.m.**

Assignee NDS, LLC's application for order for sale of dwelling is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 704.710 et seq.) First, assignee has failed to show that it is the assignee of record. (Code Civ. Proc., § 704.740, subd. (a).) Second, the application is missing the statement whether the judgment is based on a consumer debt that was secured by the debtor's principal place of residence at the time it was incurred or a statement indicating which of the exemptions listed in subdivision (b) of Section 699.730 are applicable. (Code Civ. Proc., § 704.760, subd. (d).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.